

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X ,

MARK COUNCIL,

Plaintiff,

-against-

SUMMONS WITH VERIFIED COMPLAINT

Index #:

Date Filed :

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, PO MERCEDES
RODRIGUEZ, PO "JOHN", signifying an
unknown first name and LSA RYAN MURPHY

Defendants.

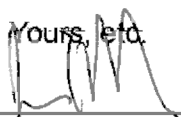
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Plaintiff designates KINGS COUNTY as the place of trial. The basis of the venue is Plaintiff's residence. Plaintiff resides at 5612 Farragut Rd, Apt 2C, Brooklyn, NY 11234

TO THE ABOVE NAMED DEFENDANTS

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York and in case of your failure to answer, judgment will be taken against you by default for the relief demanded in the annexed complaint with interest from the date the cause of action arose, costs, disbursements, punitive damages and attorneys fees.

Dated: Brooklyn, New York
July 6, 2023

Yours, etc.
By: 

James A. Maleady, Esq
The Law Offices of James Maleady, PC
Attorneys for Plaintiff
1 Dock 72 Way, 7th Floor
Brooklyn, New York 11205
Tel # (347) 452-3703
Email: jim@lawofficesofjamesmaleady.com

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The Plaintiff, MARK COUNCIL, by his attorneys, THE LAW OFFICES OF JAMES MALEADY,
PC, 1 Dock 72 Way, 7th Floor, Brooklyn, New York, 11205, alleges the following on information
and belief:

FACTUAL ALLEGATIONS

1. An incident occurred.
2. The date of the accident was April 8, 2022
3. The location of the incident was the uptown train platform of the Number 6 train at the Canal Street station in New York, NY.
4. Plaintiff swiped a Metrocard to enter the train station. Defendant, Officer Rodriguez and Officer Zhang were on the mezzanine beyond the entry turnstile. Following the sipe at

the turnstile, Plaintiff and a companion proceeded to the platform of the uptown Number 6 train at the Canal Street Station.

5. While standing on the platform, Plaintiff was confronted by Officer Rodriguez, who asked to see the Metrocard that Plaintiff had used.
6. A verbal incident then ensued as Plaintiff refused to provide the Metrocard.
7. As the incident escalated, Defendant, LSA Ryan Murphy, came toward Plaintiff and pushed him against a pillar.
8. Defendant, LSA Ryan Murphy advised Plaintiff to place his hands behind back as he was under arrest.
9. Once handcuffed, the three Defendants, PO Mercedes Rodriguez, PO "JOHN", a fictitious name, ZHANG proceeded to search him and parade him through the station to secure police location in the station.
10. Once in the secure location, Defendants searched him, took his Metrocard and his mother's Metrocard and placed him in a jail cell.
12. After he was processed and photographed while held in the jail cell for several hours, the individual Defendants advised him that he was receiving a Desk Appearance Ticket and would need to get to Court on April 27, 2022.
13. That the three individual Defendants identified heretofore were in the course of their employment by Defendant, New York City Police Department.

14. That the actions of the individual Defendants was in furtherance of their employment by the Defendant, New York City Police Department.

15. On April 27, 2022, Plaintiff appeared in Court and the charges were dismissed.

AS AND FOR A FIRST CAUSE OF ACTION

16. The Plaintiff repeats, realleges and reiterates the factual allegations in each and every Paragraph as if stated in their entirety heretofore.

17. That the Defendants violated Plaintiff's rights under 42 USC Section 1983.

18. That the Defendants through their agents, the individual Defendants named in the factual allegations improperly searched Plaintiff without any justification.

19. That the Defendants through their agents, the individual Defendants named in the factual allegations, improperly searched Plaintiff without any justification.

20. That the Defendants through their agents, the individual Defendants named in the factual allegations improperly seized Plaintiff without any justification.

21. That the Defendants through their agents, the individual Defendants named in the factual allegations that the improper seizure of Plaintiff of Plaintiff constituted an assault.

22. That the actions of the individual Defendants were a violation of the Plaintiff's rights under 42 USC Section 1982.

23. The actions of the individual Defendants are attributable to their co-Defendants, The City of New York and The New York City Police Department.
24. The amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

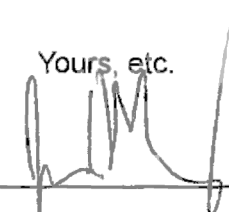
25. The Plaintiff repeats, realleges and reiterates the factual allegations in each and every Paragraph as if stated in their entirety heretofore.
26. That the Individual Defendant officers, PO MERCEDES RODRIGUEZ, PO "JOHN", signifying an unknown first name, ZHANG and LSA RYAN MURPHY, had no good faith basis to speak with Plaintiff and request production of the Metrocard used.
27. The Defendants consequently violated Plaintiff's rights as US and NY Constitution, when they requested production of the Metrocard.
28. Plaintiff is entitled to special and regular damages related to losses resulting from the unwarranted arrest and holding of Plaintiff.
29. The direct of Plaintiff's rights under 42 USC Section 1983 led to compensable losses to the Plaintiff.
30. The amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, the Plaintiff respectfully request that the Court grant a judgment against the defendant on the first cause of action for compensatory damages in an amount to be

determined by a jury at the trial of this action together with interest from the date the cause of action accrued, costs, disbursements, punitive damages and attorney's fees.

Dated: Brooklyn, New York
July 6, 2023

Yours, etc.

By: 

JAMES A. MALEADY, ESQ.
The Law Offices of James Maleady, PC
Attorneys for Plaintiff
1 Dock 72 Way, 7th Floor
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VERIFICATION

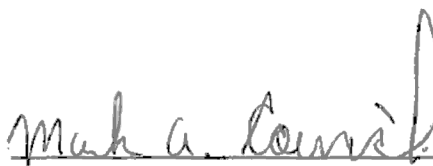
STATE OF NEW YORK)

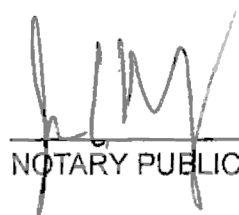
COUNTY OF KINGS)

I, MARK COUNCIL, I being duly sworn, say:

I am the Plaintiff in the within action; I have read the foregoing Verified Complaint, and know the contents thereof, the same is true to my own knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

Sworn to before me on
6th day of July 2023


MARK COUNCIL


NOTARY PUBLIC

JAMES A. MALEADY
Notary Public - State of New York
No. 02MA5028822
Qualified in Richmond County
Commission Expires June 6, 2026

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Defendants.

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Rule 130-1.1(a) Compliance: _____

The Law Offices of James Maleady, PC

Attorney for Plaintiff

1 Dock 72 Way, 7th Floor

Brooklyn, New York 11205

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